IN THE DISTRICT MAGISTRATE COURT HELD AT GBESE, ACCRA BEFORE HER WORSHIP ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.) ON TUESDAY THE 13TH DAY OF MAY, 2025.

SUIT NO. A11/26/2024

AGNES ADDY ::: PLAINTIFF
(Suing for herself and on behalf
Of the beneficiaries of the Estate
Of Christian Duncan Bruce @ Cato)

VRS.

1. **REV. YAMOAH**
2. **REGINA NAA DEI**
3. **THERESA BIBOYO ::: DEFENDANTS**
4. **JOHN PAINTSIL OKO**

Time: 8:23 am.

Parties: Present.

Legal Representation: Legal Representation: Ebenezer Abaka-Wilson, Esq holding brief Dennis Yao Terkpertey, Esq for the Plaintiff.

Richard Odum Mensah, Esq for the Defendants.

JUDGMENT

By a Writ of Summons issued on 17th April, 2024, the jurisdiction of this Court was invoked by the Plaintiff for the following reliefs against the Defendants:

1. An order directed at the Defendant to vacate or yield up vacant possession of the two-bedroom outhouse, the property of the Plaintiff and beneficiaries of estate of Christian Duncan Bruce @ Cato.
2. Cost of litigation.
3. Any other orders that the Honourable Court deems fit.

THE CASE OF THE PLAINTIFF

The Plaintiff is a beneficiary of the estate of Christian Duncan Bruce nee Cato, grandmother of the Plaintiff, a trader and resident of Kokotako Garden House, James Town. The Plaintiff's mother at the time the writ was issued was alive but too old to institute the action and thus gave her consent and authority to the Plaintiff to maintain this instant action on behalf of all the beneficiaries. The Plaintiff says that the subject matter house was originally acquired by her great grandfather John Ami Cato who willed the house to Christian Duncan Bruce @ Cato and Anna Buckle and the subject matter house forms part of the estate of Christian Duncan Bruce @ Cato whom the Plaintiff traced her line of inheritance. The Plaintiff says that her grandmother Christian Duncan Bruce a Cato entrusted her estate to her half-brother Jonathan Cato as caretaker. The Plaintiff says that Mr. Ansah Quaye rented the subject matter house for his mother and siblings who lost their land as result of establishment of Ghanata School, Dodowa and had to relocate to the subject matter house as tenants. The Plaintiffs says that the said mother and siblings of Mr Ansah Quave had lived in the subject matter house and died but they left behind the Defendants who are descendants of Mr. Ansah Quave's mother. The Defendants, after the death of Mr. Ansah Quaye's mother and siblings and Mr. Ansah Quaye have continued to live in the two-bedroom out house, subject matter house before this Court. The Plaintiff says that the original House was a wooden structure that became weak and a death trap for which Accra Metropolitan Assembly issued a warning notice for its demolishing. The Plaintiff says that she converted the entire house into a modern building by using cement blocks from her own resources. The Plaintiff says that she has

made repeated demands for the defendant to yield up possession of the two-bedroom out house but the Defendants failed to do so. The Defendants led by the 1st defendant pleaded to maintain their status as tenants of the two-bedroom out house but the Plaintiff and beneficiaries refused the said offer on grounds it is needed for a different purpose. The Plaintiff says that the Defendants failed to pay rent for over 10 years and their continued stay is creating a nuisance to the Plaintiff's family. The Plaintiff says that the defendant will not yield up vacant possession of the said two-bedroom out house unless compelled by this Court to do so. The Plaintiff claims against the Defendants jointly and severally to yield up possession of the two-bedroom outhouse currently occupied by the Defendants and cost of litigation as reliefs endorsed on the particulars of claim.

EVIDENCE IN CHIEF OF PLAINTIFF

Plaintiff repeated her averments and added some documents to buttress her testimony as seen below. According to Plaintiff her great great grandfather John Ami Cato who willed the house to Christiana Duncan Bruce @ Cato and Arabena Cato and the subject matter forms part of the estate of Christiana Duncan Bruce @ Cato through whom she traces her line of inheritance. Her great grandmother Christiana Duncan Bruce @ Cato entrusted her estate to her half brother Jonathan Cato as caretaker. Her great grandmother gave birth to Anna Buckle, who also gave birth to her mother, Gladys Solomon. Anna Buckle predeceased Christiana Duncan Bruce @ Cato. Sometime in 1962 Plaintiff's great grandmother caused her Lawyers to write to Mr. Ataa Nee Cato to vacate the subject matter house to enable same to be reconstructed. Before the death of Jonathan Cato, he handed over documents on this subject matter house to Plaintiff's mother Gladys Solomon together with the will and last testament from John Ami Cato and informed her mother that he was just a caretaker. Prior to the death of Jonathan Cato, her great grandmother Christiana Duncun Bruce revoked the Power of Attorney given to him and a new power of attorney was denoted to Plaintiff's mother and Frank Solomon. Christiana Duncan Bruce@ Cato stated that Frank Solomon and Ebenezer Solomon had no right of inheritance in the subject natter house. She stated that their right of inheritance is in their father's property situated at Abossey Okai. Happy Days. The said Frank

Solomon and Ebenezer Solomon were the grandchildren of Christiana Bruce Duncan @ Cato. The subject matter house was bequeathed to Plaintiff's mother Gladys Solomon and her sister Augustina Commev @ Solomon. Mr. Ansah Quaye, the Defendants' relative rented the subject matter house from Mr. Jonathan Cato for his mother and siblings who lost their land as result of establishment of Ghanata School, Dodowa. Though they were compensated they decided not to build with the said compensation but rather relocate to the subject matter house as tenants. Mr. Ansah Quaye was paying rent to Mr. Jonathan Cato but stopped immediately Mr. Jonathan Cato died. Over the years the mother and siblings of Mr. Ansah Ouaye who had lived in the subject matter house died but the left behind the Defendants who are descendants of Mr. Ansah Quaye's mother and are currently living in the two-bedroom out house subject matter house. The original house was a wooden structure that became weak and a death trap for which City Council then but now Accra Metropolitan Assembly issued a warning notice for its demolishing. Plaintiff solicited loan from the Bank using the land documents of this subject matter house as collateral and reconstructed the entire house into cement blocks. The ground floor was made up of 8 rooms, the 1st floor made up of 7 rooms, the out-house are made up of three rooms on one part and another self-contained made up of 2 rooms occupied by the Defendants, the subject matter before this court. Plaintiff had no choice but to raise money to salvage the house by converting the entire house into modern building by using cement blocks. Defendants are not related to Plaintiff's family in any way and she made repeated demands for the defendant to yield up possession of the two-bedroom out house but the Defendants failed to do so. In 2019, I invited the Defendants and asked them to vacate the family house they occupied without payment of rent but they pleaded to be given sometime. In 2023, Plaintiff called the defendant and demanded that they yield up possession of the subject matter house and the 1st defendant pleaded for some time for the 2nd to 4th Defendants who are his relatives. In December 2023 Plaintiff informed 1st defendant of her need of the family property for different use by the family. He still pleaded to be given sometime but Plaintiff realized that the Defendants are not ready to yield up vacant possession. In January 2024 the Defendants made it clear to Plaintiff that the only way to cause them to leave the property is by Plaintiff suing the Defendants. 1st Defendants pleaded to rent the two-bedroom out house but Plaintiff and

the other beneficiaries refused the said offer on grounds that it is needed for different purpose Even though the Defendants still live in the family house as tenants they have failed to pay rent for over 10 years and their continued stay is creating a nuisance to the family Defendants have made up their minds not yield up vacant possession of the said two-bedroom out house unless compelled by this Court to do so.

THE CASE OF THE DEFENDANT

Defendants say that the said Christiana Duncan Bruce Nee Cato is the grandfather of the Plaintiff and that it is the Plaintiff's mother who is a beneficiary of his estate and not the Plaintiff. Defendants say that Plaintiff's mother is alive and quite old (at the time the suit was instituted). Defendants further state that the Plaintiff lacks the capacity to institute this action and that she has no such authority to act on behalf of the beneficiaries of the estate. The entire parcel of land was originally acquired by John Ami Cato and later willed to Christiana Duncan Nee Bruce @ and Anna Buckle. 1st Defendant's grandfather, Godfred Yamoah, was living at Dodowa. Unfortunately, his land was compulsorily acquired by the State for the construction of Ghanata School. Mr. Jonathan Quaye when he became aware of the situation invited Defendant's grandfather to settle in Accra and permitted him to put up a building on a portion of the parcel of land to settle therein with his family with the knowledge and consent of Christiana Duncan Nee Bruce @ Cato. Defendants aver that Mr. Ansah Quaye, who is the grandson of Godfred Yamoah constructed a single room with a porch on the parcel of land around 1970 and later an additional single room on the land in 1992 with the permission of Mr. Jonathan Quaye and Christiana Duncan Bruce @ Cato. Mr. Ansah Quaye's mother by name Mary Yamoah and her two other sisters; Auntie Fio and Hannah Yamoah lived in the buildings he constructed on the land until their demise. Defendants say that their building is different from the family house which was constructed partly with wood. However, the building constructed by Mr. Ansah Quaye in which they reside is a block building. The family house was reconstructed with the contribution of all family members including the contribution of the Defendants and is different from the two (2) bedroom house Defendants reside in. Defendants aver that the Plaintiff has no right to require the

Defendants to yield the two (2) bedroom house and that the Plaintiff has been harassing them to vacate the building. At a meeting to resolve the impasse it was suggested that the Defendants pay an amount as monthly or yearly rent to the estate of Christiana Duncan Bruce nee Cato so that Plaintiff's abate the harassment. However, the suggestion was not accepted by the Plaintiff. Defendants say that they are no tenants to be paying rent and that is why no rent has ever been paid by the Defendants neither did their mothers also pay any rent. Defendants contend that they reside in the 2-bedroom building because the late Christiana Duncan Bruce nee Cato permitted their grandfather to build on the portion of the land which was done. Defendant's predecessors have been in peaceful possession from the 1970s until the Plaintiff started harassing them to leave the property. Defendants contend that the Plaintiff is thus estopped from requiring Defendants to yield vacate possession of the two (2) bedroom building. Defendants say that the Plaintiff's claims are frivolous unmeritorious and should be dismissed by the Honourable.

EVIDENCE IN CHIEF OF DEFENDANTS

1st Defendant testified on behalf of the Defendants who resides at Samsam on the Nsawam Road. 1st Defendant says he knows the Plaintiff and her mother, Gladys Solomon (aka Aunty Naa). He has known Plaintiff's mother as his Aunty. John Ami Cato acquired the parcel of land including the subject matter of dispute. John Ami Cato willed the subject matter to his daughters Christiana Cato and Ewura Abena Cato. 1st Defendant's grandfather was Mr. Godfred Yamoah and he lived in Dodowa. The Government of Ghana compulsorily acquired a parcel of land at Dodowa for educational purposes and the establishment of Ghanatta Secondary School. This acquisition affected his grandfather's residence and he had to relocate with his family. His grandfather was a good friend of Mr. Jonathan Cato. Fortunately, Mr. Jonathan Cato seeing my grandfather's plight invited him and his family to settle on the portion of the parcel of land on which the garden house is located with the consent of Christiana Cato. Mr. Jonathan Cato permitted 1st Defendant's father to build on a portion of the land. At that time, his grandfather was old and Mr. Ansah Quaye constructed the building on his behalf. Mr. Ansah Quaye is the son of Mary Yamoah whose father is Mr. Godfred

Yamoah. The building was constructed in the 1970s. He first constructed a chamber and hall. The daughters of Mr. Godfred Yamoah lived there including Mary Yamoah, Aunty Fio Yamoah and Hannah Yamoah. Madam Christiana Cato was alive and saw the construction but did not stop it. Mr. Ansah Quaye put up another single room in addition to the chamber and hall earlier constructed. The daughters of Mr. Godfred Yamoah all lived there until they passed away. After their passing, Some of their children lived there and now their grandchildren who are the 2nd to 4th Defendants reside in the building. Three generations of 1st defendant's family have lived in the subject matter which consists of the chamber and hall and the single room constructed by Mr. Ansah Quaye for Mr. Godfred Yamoah with the permission of Jonathan Cato and the consent of Christiana Cato. The subject matter of dispute is different from the main house initially constructed by John Ami Cato. 1st defendant's grandmother is Aunty Fio Yamoah and he came to live in the subject matter of dispute around the age of 12 years. He was then primary school. 1st defendant moved out when he completed his technical education around 1976. He occasionally visited the subject matter to see his cousins and the Plaintiff's mother. The subject matter of dispute has become their family house and all family members usually come there during festivals and family occasions. It is not true that they were placed in the house as tenants they have never paid any rent to anyone. The claim by the Plaintiff that they have not paid rent for over ten years is true because they have never paid rent for the building for the over fifty years they have lived in it. Mr. Ansah Quave never rented the subject matter for his mother and his mother's siblings as claimed by the Plaintiff. For over fifty years, they have lived peacefully in the house without any challenge from even the Plaintiff's mother and Plaintiff's aunties and uncles. The Plaintiff s mother has never asked them to vacate the house. The Plaintiff's mother was unaware of this action taken by the Plaintiff in her name. Christiana Nee Bruce Cate was alive at the time Mr. Ansah Quaye put up the initial building and never stopped him, saw Defendants residing in the property after the construction and never challenged them or asked them to vacate it. About two years prior to the suit, Plaintiff started harassing Defendants to vacate the subject matter even though her mother did not support her action. Defendants have tried to find an amicable settlement with Plaintiff but she has been adamant. She then subsequently filed this instant suit. It is Defendant's case that the

Plaintiff did not have the authority of her mother to pursue this legal action and does not have the capacity to initiate this action. She is not a beneficiary of the estate and cannot maintain this action.

ISSUES

1. Whether or not the Plaintiff has capacity to institute and maintain this action.
2. Whether or not the Defendants have interest in the property in dispute.
3. Whether or not the Plaintiff has the right to eject the Defendants.

THE LAW

The Burden and Persuasion of Proof

Evidence Act 1975 (N.R.C.D. 323)

In examining the case put forward by the parties, the court must be circumspect and deal with facts as well as the evidence adduced and most importantly the law. The law that this court will be instructed by are as follows:

Section 10

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(b) to establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

Section 11

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads a reasonable mind to conclude that the existence of the fact was more probable than its non-existence.

Section 12

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

Section 17

Except as otherwise provided by law,

(a) the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof;

(b) the burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact.

In applying the above statute, in the case of ***Ackah v. Pergah Transport Ltd (2010) SCGLR 728 @ 736*** the Supreme Court held:

"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the

evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."

ANALYSIS

Issue 1- Capacity of the Plaintiff

On the issue of capacity, the Defendants state from their pleadings and evidence-in-chief that the Plaintiff lacks capacity to commence the suit. Capacity is an issue that can be raised at any point in the proceedings and it is up to the person who claims to have capacity to prove same. Thus, a Plaintiff whose capacity is challenged needs to adduce credible evidence at the earliest opportunity to satisfy the court that it had the requisite capacity to invoke the jurisdiction of the court. If this is not done, the entire proceedings founded on an action by a Plaintiff without capacity would be nullified should the fact of non-capacity be proved. (See ***Nii Kpobi Tettey Tsuru III & Ors vrs. Agric Cattle Supreme Court Civil Appeal Suit No. J4/15/2019 dated 18 March 2020 Ghana and Standard Bank Offshore Trust Co. Ltd v National Investment Bank & 2 Ors [2017-20181 1SCGLR 707).*** Here the Defendants state that the Plaintiff did not have the consent of the Plaintiff's mother to institute the action neither is Plaintiff a beneficiary of the estate of her great grandmother and did not have the consent of the other beneficiaries to institute this action. Before trial commenced, Plaintiff unfortunately lost her mother thus her consent or otherwise could no longer be interrogated. From the record, apart from the Plaintiff's word, there was indeed nothing else to prove if she had the consent of the other beneficiaries. As a matter of fact, there really is nothing to show if there are other beneficiaries. There was a hint as to the possibility of the existence of other beneficiaries under cross examination as follows:

Q: How many children did Anna Buckle have?

A: Five (5).

Q: That included your mother Gladys Solomon, not so?

A: Yes and she was the senior.

Q: What are the names of the other 4 children?

A: Ebenezer Solomon, Ernestina Solomon, Frank Solomon and Eben Solomon.

Q: Which of them are alive?

A: They are all dead.

Neither the Plaintiff nor the Defendants shed further light on the fact of other beneficiaries if any. Supposing therefore no other beneficiaries existed, can the Plaintiff be deemed a beneficiary of the estate? This raises an important question of who qualifies as a beneficiary of any estate. Looking at the Intestate Succession Act, 1985 (PNDCL 111) as a whole, the following persons are entitled to the estate of a deceased person who died intestate namely the spouse, the child, parents and the family of the deceased. In this instance Plaintiff's great-great grandfather John Ami Cato willed the house to Christiana Duncan Bruce @ Cato and Arabena Cato and the subject matter forms part of the estate of Christiana Duncan Bruce @ Cato through whom Plaintiff traces her line of inheritance. Her great grandmother gave birth to Anna Buckle, who also gave birth to her mother, Gladys Solomon.

These facts went undisputed by the Defendants and as such deemed admitted. When confronted about being a beneficiary under cross examination the following ensued:

Q: I am suggesting to you that you are not a beneficiary of this property?

A: I am a beneficiary; my grandmother gave the property to Jonathan Cato as a care taker and Jonathan Cato handed it over to my mother (Gladys Solomon). So my mother took care of the property until she became old, she then gave me a Power of Attorney to take care of the property. The whole of the property is a wooden structure and the structure broke down so we were served by AMA to renovate the house as it was posing as a hazard.

That being said, can a beneficiary sue in respect of the estate of the deceased? Thus, will the said person be deemed to have capacity or locus standi? In the case of ***Florini Luca & Anor. v. Mr. Samir & Ors. (2021) JELR 107275 (SC)*** the Supreme Court held as follows:

> "From the above, the Plaintiff in that case was suing in a representative capacity and the trite learning is that such party must state so in the endorsement on the writ of summons and must prove that capacity... It is pertinent to recognize that though capacity and locus standi are closely related and in many instances arise together in cases in court they are separate legal concepts. Capacity properly so called relates to the juristic persona and competence to sue in a court of law and it becomes an issue where an individual sues not in her own personal right but states a certain capacity on account of which she is proceeding in court. But locus

standing relates to the legal interest that a party claims in the subject matter of a suit in court. This may be dependent on the provisions of the statute that confers the right to sue, such as the Fatal Accidents Acts in Akrong v. Bulley. Otherwise, generally locus standing depends on whether the party has a legal or equitable right that she seeks to enforce or protect by suing in court. In Akrong v. Bulley the statute conferred locus standing on only executors, administrators and dependants but the Plaintiff stated that she was suing as "successor and next-of kin" so the court held that she had no locus standing as she did not take letters of administration before commencing the action which would have clothed her with capacity as administrator. In this case, apart from the lawful attorney who sued in a representative capacity and has stated it on the writ of summons …, the two Plaintiffs are not suing in a representative capacity. It is vital to observe that they have not sued on behalf of the estate of their deceased mother either but they say that the property has devolved on them by operation of Italian law…Under those circumstances, they have locus standing to sue in their own right. The substance of the challenge of the Defendants is more as to the locus standing of the Plaintiffs than capacity since they have not pleaded a representative capacity and are not claiming the property on behalf of the estate of their mother."

The Plaintiff in this case disclosed on her writ that she was suing in two capacities that is, for herself (personal capacity) and on behalf of the other beneficiaries. In the case of ***Simon Hopper (Suing For And On Behalf Of The Royal Nsona Family Of Nkanfoa) vrs. Kwesi Kwetia (2024) JELR 111562 (SC)*** the court held as follows:

"The continued submissions of counsel for defendant on the Plaintiff lacking capacity to sustain this action seems to totally fail to appreciate the two-pronged causes of action that Plaintiff presented to court. There was the **personal action** to recover damages for destruction to his crops, and **this alone gave the Plaintiff standing in court**. And there was the **representative capacity that Plaintiff disclosed as a member of a section of family whose head had died at the time he commenced the court action after they had experienced interference with their possessory rights.** On the issue of the demise of his family head at the time

the action was commenced, we fail to see the premise for defendant's continued protests, in the absence of evidence to the contrary."(my emphasis)

The fact that the Plaintiff is suing as a beneficiary on its own gives her standing to pursue this action as she has been able to demonstrate her interest in the said estate by tracing her line of inheritance. Thus, even if she failed to disclose by some cogent means consent from the rest of the beneficiaries, she still had standing to maintain the action.

Issues 2 and 3- Interest of Defendants/Right of Plaintiff to Eject Defendants.

Issues 2 and 3 will be dealt with together as the resolution of one will lead to the resolution of the other. It is the case of the Defendants that the said land in dispute was given to the 1st Defendant's grandfather Mr. Godfred Yamoah, who was good friends with Jonathan Cato – the Plaintiff's uncle- to settle on after he lost his land at Dodowa to the Government. It is their contention that the said land was given to their grandfather with the consent of Christiana Duncan Bruce @ Cato. The Plaintiff contends that the Defendants and the rest of their family members from 1st Defendant's grandfather to the current members of the family were all tenants. This thus begs the question of what interest exactly do the Defendants have? Sections 10, 11 and 17 of NRCD 323 require a person making a positive assertion to prove that fact first and foremost. In the case of ***Ackah v. Pergah Transport Ltd supra*** the principle is that "a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury".

Thus, while it is the Plaintiff who has brought the Defendants to court, the burden was first on her to prove that she has a prima facie interest in the property in question. The said burden shifts on the Defendants when they particularly make a positive assertion capable of proof especially when the said assertion has been denied by the Plaintiff. On

the face of the evidence on record, the Plaintiff has been able to prove that she has interest in the property as she is a descendant of Christiana Duncan Bruce @ Cato and that the said property was willed to the said Christiana Duncan Bruce @ Cato making Plaintiff a beneficiary. The Defendants have not denied Plaintiff's claim of being a descendant of Christian Duncan Bruce @ Cato. The Defendants therefore have to prove what interest they have in the said property. The Defendants did not exhibit any form of documentary evidence that shows the type of interest the 1st Defendant's grandfather was given. From the testimony of the parties, Jonathan Cato was the one to give the said land to 1st Defendant's grandfather with the consent of Christiana Duncan Bruce @ Cato and this is disputed by the Plaintiff. Her version of events is that Mr. Ansah Quaye rented the said property from Plaintiff's grandmother on behalf of his family members and was paying rent to Jonathan Cato. In addition, at some point Jonathan Cato had a power of Attorney from Christiana Duncan Bruce which was subsequently revoked. Under cross examination the following ensued:

Q: You know that the building occupied by the Defendants was constructed by Ansah Quaye, not so?

A: That is not true.

Q: I am suggesting to you that it was put up by Ansah Quaye?

A: That is not true.

Q: And he did so because Mr. Jonathan Cato permitted Mr. Godfred Yamoah whose land had been compulsory taken by the State to build and stay on the said land, is that not the case?

A: That is not so.

The said power of attorney was revoked on 10th December 1984 and same was revoked because Jonathan Cato had not been rendering accounts to Christiana Duncan Bruce @ Cato. From the record the said power was given in 1951. If therefore Godfred Yamoah was invited onto the land in 1936 by Jonathan Cato, then he obviously had no right to do so, head of family or not. However, since the Defendants were not immediately vacated,

it can be presumed that there was consent from Christiana Duncan Bruce @ Cato albeit not in writing. The following ensued under cross examination of the 1st defendant:

Q: You will agree with me that the subject matter land, upon which Kokotako garden house and the property you live in are the properties of the Plaintiff's mother and sister by succession?

A: Yes.

Q: So you will also agree with me that Jonathan Cato has no beneficiary interest of the land upon which the subject matter house that you are occupying is situated?

A: I agree. At a point in time he was the head of the family that is why he gave that place to my grandfather and Kpakpo Allotey put up the first building.

Q: You will also agree with me that the subject matter land upon which the subject house is situated was never sold to Ansah Quaye?

A: Yes I agree it was not sold but it was given to him.

Q: You will also agree with me that the subject matter land upon which the subject house is situated was never gifted to Ansah Quaye?

A: Yes it was not gifted to Ansah Quaye but rather it was gifted to Godfred Yamoah and Ansah Quaye put up the building.

Q: I put it to you that, the subject matter house was rented by Ansah Quaye for his mother?

A: It is not true.

Q: I am putting it to you that because Jonathan Cato has no interest in the land upon which the subject matter house is situated he has no capacity to neither grant nor give nor gift it to any person including Ansah Quaye?

A: He has the capacity to give because by then he was the head of family.

Considering the presence of the Defendants on the property and the undisputed fact of the land being given to Godfred Yamoah and the absence of documentary evidence of interest, I can conclude that the interest given to Godfred Yamoah was a license. The

common law recognized three categories of licenses being, bare or gratuitous licenses; license coupled with a grant or interest and contractual licences. The facts in this instance support that the type of license given was a bare or gratuitous license. There is no evidence to support consideration of any kind moving between Jonathan Cato and Godfred Yamoah for the interest acquired to be anything else. In the case of ***Marian Obeng Mintah vrs. Francis Ampenyin (2015) JELR 68940 (SC)*** the position of a licensor and the effect of a license was extensively discussed.

> "A bare or gratuitous licence is a mere permission for the licensee to enter upon the licensor's land. This permission may be withdrawn at any time by the licensor… The concept of a gratuitous tenant has received considerable treatment by Ghanaian writers in Land Law and Property. In his Ewe Law of Property, (1973) by Prof A.K.P. Kludze and edited by Anthony Allott, at page 245 the learned author highlighted on the concept thus: "A gratuitous tenancy may be determined if the tenant tries to set up an adverse title to the land. As its basis is usually blood relationship or friendship, it may also be determined for ingratitude, disobedience or bad behaviour towards the grantor or for committing waste. The right and grounds for determining a gratuitous tenancy extend to the successors of the grantor and grantee. **Hence a gratuitous tenancy granted several generations ago may be determined today if a bad relationship develops between those who have succeeded the original parties**.""

The Defendants, Under cross examination of the 1st Defendant by Counsel for Plaintiff to ascertain the interests if any, had by the Defendants; the following ensued:

Q: *In one of your answers given on 20th February, 2025 you mentioned that the subject matter upon which the property in dispute is situated was gifted to Godfred Yamoah?*

A: *Yes.*

Q: *Do you have any document in evidence before this Court that that property was gifted to Godfred Yamoah?*

A: *No.*

Q: Can you tell the Court who gifted the property?

A: It was Mr. Jonathan Cato who gave it to him.

Q: Are you aware that the late Jonathan Cato is not the owner of the said land?

A: Yes I am aware. He was then the Head of the Family.

Q: I am putting it to you that the said Jonathan Cato cannot gift a property that he has no interest in?

A: He can.

Q: Are you aware that it was Mr. Ansah Quaye who rented the subject matter house to be occupied by his mother and siblings when their land was acquired by the government in the construction of the Ghanata Secondary School?

A: It was given to Godfred Yamoah and Mr. Ansah Quaye put up the building because Godfred Yamoah was old by then.

Q: In your answer to this Court you mentioned that there was a personal relationship between Mr. Ansah Quaye and Jonathan Cato?

A: It is incorrect. What I said was that there was a relationship between Godfred Yamoah and Jonathan Cato.

Q: In you paragraph 11 of your Statement of Defence, you stated that Mr. Ansah Quaye constructed a single room and a porch on the parcel of land in 1970, do stand by this statement?

A: Yes.

Q: In that same paragraph, you also stated that he constructed additional room on the land in 1992, do you stand by this statement?

A: Yes, the first one was constructed in early 70's and the second one was constructed in 1992.

Q: So you will agree with me that Mr. Godfred Yamoah has not constructed any building in your own paragraph 11 of your Statement of Defence on the land?

A: Yes.

Q: So I am putting it to you that it was Mr. Ansah Quaye who rented the building which was previously occupied by his mother and siblings?

A: It was not rented.

According to the Defendants, the subject matter of the suit was given to the 1st defendant's grandfather as a gift when Jonathan Cato saw his plight. There is a plethora of case law on proving that a gift of land has been given to another person particularly under customary law. (see ***Summey vrs. Yohuno And Others [1962] 1 GLR 160 - 168*).** The Defendants merely mentioned that the said land was a gift to the 1st Defendant's grandfather but did not show any form of evidence to that effect which was their burden to discharge.

From the above, evidently the relationship between the parties has soured over the years. Therefore, the Plaintiff has the right, being a beneficiary of the estate, to determine the license.

CONCLUSION

To sum it all up, the evidence on record by and large supports the Plaintiff's case. From case law, the Plaintiff has the right to sue as she is a beneficiary of the estate. Secondly, the evidence on record supports a finding of fact that the interest, if any given to the Defendants is that of a licence and a licence can be revoked even by the descendant of the original licensor. Therefore, the Plaintiff has the right to eject the Defendants even though she did not directly give this land. Clearly, her presence in court shows that the relationship between the parties has seen better days and desires that the said relationship ends.

FINAL ORDERS

1. The Defendants are ordered to yield up vacant possession of the two-bedroom outhouse, the property of the Plaintiff and beneficiaries of estate of Christian Duncan Bruce @ Cato by 30th September 2025.

2. Costs of GH¢30,000.00 in favour of Plaintiff.

(SGD)

H/W. ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS)

(DISTRICT MAGISTRATE)